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|    |                                                             | <p><b>“[p]revailing plaintiffs are generally limited to injunctive relief and restitution.”</b></p> <p>As such, to the extent ¶98 includes verbiage beyond injunctive relief or restitution, that Court strikes it without leave to amend. That is, the Court <b>strikes “disgorgement of profits or any amounts by which Defendants have been unjustly enriched as a result of their wrongful conduct, appointment of a receiver, constructive trust” language from ¶98.</b></p> <p>Finally, as to striking any language from the <u>prayer</u>, the prayer is not organized by cause of action and Defendants fail to establish that this particular language or remedies are not appropriate to the other causes of action (beside UCL) in the FAC.</p> <p>Therefore, <b>Motion to Strike portions of the Prayer is denied.</b></p> <p><b>Defendants to give notice.</b></p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 8. | <p><b>30-2023-01340665</b></p> <p><b>Reyes vs. Chow</b></p> | <p><b>1. Case Management Conference</b><br/><b>2. Motion to Deem Facts Admitted</b></p> <p>Plaintiffs Carlos Antonio Reyes and Maria Susana Enriquez (“Plaintiffs”) moves to deem Requests for Admission, Set One admitted against Defendant Julio Sanchez (“Defendant”). Plaintiffs also request \$772.50 in sanctions (\$60 filing fee plus 1.5 hours at \$475/hour).</p> <p>Code of Civil Procedure section 2033.280 provides that if a party to whom requests for admission are directed fails to serve a timely response, the party waives any objection to the requests. (Code Civ. Proc., § 2033.280.) The requesting party may also move for an order that the genuineness of documents and the truth of any matters specified in the requests be deemed admitted. (Code Civ. Proc., § 2033.280. subds. (a)-(b).)</p> <p>The court shall deem the matters admitted unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220. (Code Civ. Proc., § 2033.280, subd. (c).) Monetary sanctions are mandatory against the party or attorney who necessitated the motion unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (<i>Ibid.</i>)</p> <p>Here, the discovery at issue was served on 08/05/2025. Defendant has not provided any responses. Defendant failed to oppose the motion and therefore did not proffer evidence establishing otherwise.</p> <p><b>Unless Defendant Julio Sanchez provides verified responses to Requests for Admission, Set One before the hearing on the motion, the motion will be GRANTED and Requests for Admission, Set One will be deemed admitted against Defendant Julio Sanchez.</b></p> <p>Plaintiffs’ request for sanctions is <b>GRANTED</b> in the reduced amount of <b>\$535</b>, (1 hour at \$475/hour plus \$60 for the filing fee) <b>to be paid within 30 days of notice of this motion.</b></p> <p><b>Plaintiffs to give notice.</b></p> |